

N66604-26-Q-0134 Combined Synopsis/Solicitation

This is a combined synopsis and solicitation for commercial items prepared in accordance with the format in FAR Subpart 12.6 as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; quotes are being requested and a written solicitation will not be issued. This solicitation will be open for less than 30 days, in accordance with FAR 5.203(b). Request for Quotation (RFQ) number is N66604-26-Q-0134.

The Naval Undersea Warfare Center Division, Newport (NUWCDIVNPT) intends to award a five year, Firm Fixed Price (FFP) Indefinite Delivery Indefinite Quantity (ID/IQ) contract to Keysight Technologies, (Cage: 7ZXR5) 1900 Garden Of The Gods RD Colorado Springs, Colorado 80907-3423 on a sole source basis for calibration and repair services of Keysight equipment, in accordance with the Statement of Work (SOW), provided as Attachment 1 and Equipment Model List, provided as Attachment 2.

This requirement is solicited on an unrestricted basis as concurred with by NUWCDIVNPT's Office of Small Business Programs. The North American Industry Classification Systems (NAICS) Code is 811210; the Small Business Size Standard is 34 Million Dollars.

NUWCDIVNPT has a requirement to procure Calibration and Repair Services of Keysight components in support of code 7012, Rapid Prototyping, Calibration, and Survivability Branch, specifically the Metrology and Calibration Laboratory (METCAL). Laboratories providing full calibration in support of the Navy METCAL Program must be certified by an accrediting body approved by the NAVSEA METCAL Technical Warrant Holder (TWH) (NAVSEA 04RM) and as required by NAVSEA 09M/050, NAVSEA Policy for Subcontracting Test, Measurement, and Diagnostic Equipment. In addition, Laboratories must be accredited to the ANSI/NCSL Z540.3 standard and/or ISO/IEC 17025 Standard. To meet these standards, the testing laboratory must have access to OEM proprietary manuals, calibration procedures, software, firmware, and coefficients required to provide these calibrations. To use a source other than Keysight for calibration services, the NUWCDIVNPT METCAL would have to perform an extensive review of the calibration capability of any interested calibration vendor. This effort would include reviewing its scope of certification and performing pre and post-Test Uncertainty Ratio calculations for every measurement required. This would result in substantial duplication of cost to the Government that is not expected to be recovered through competition and in unacceptable delays in fulfilling the agency's requirements. Therefore, no laboratory other than the OEM, Keysight, can fulfill this requirement.

This notice is not a request for competitive quotes. All responsible sources may submit a capability statement which will be considered by the Government. A determination by the Government not to compete this acquisition based upon responses to this notice is solely within the discretion of the Government. Information received will be considered solely for the purpose of determining whether to conduct a competitive procurement in the future.

The Anticipated Contract Line Item Number (CLIN) structure is identified below:

CLIN	Description
0001	Calibration Services in accordance with the SOW
0002	Evaluation Services for Nonstandard Repairs in accordance with the SOW
0003	Standard Repair Services in accordance with the SOW
0004	Nonstandard Repair Services in accordance with the SOW
0005	Expedited Calibration and Repair in accordance with the SOW
0006	Contract Data Requirement Lists (CDRLS), In accordance with Attachment 3 Not Separately Priced (NSP)

Note: Attachment 2 Equipment Model List provides a list of all items which may require service under this IDIQ.

Note: Pricing of services under CLINs 0002 and 0005 shall be established at award of the basic contract, through Government Acceptance of the Offeror's quote in response to this RFQ.

Note: As needs arise the Government will issue a request for quote for equipment specific pricing for services performed under CLIN 0001 and 0003. Through Government acceptance of a quote, equipment specific pricing for services performed under CLIN 0001 and 0003 will be established at the order level.

Note: Unit pricing under CLIN 0004 will be established through Government acceptance of a quote provided in the performance of CLIN 0002 tasking, and issuance of a subsequent order or modification to an existing Task Order.

Delivery location: FOB Destination NUWCDIVNPT Newport, RI

Date of Delivery: To be established at order level

Issuance of Task Orders and Orders Placed via Government Purchase Card

This is an IDIQ contract with FFP Provisions. The Offeror shall deliver items according to the orders issued hereunder. The resulting contract will contain five consecutive one-year ordering periods. Year 1 ordering period will be date of award through 12 months thereafter. The offeror shall completely fill out and return the Pricing Tables contained herein of its price submission.

Note: Orders exceeding the Micro Purchase threshold shall be issued via Delivery Order. Orders under the micro purchase threshold may be placed via Government Purchase card without issuance of a delivery order.

The contract minimum guarantee referred to in paragraph (b) of FAR Clause 52.216-22 'Indefinite Quantity, is \$25,000. The maximum ceiling of this contract is established as \$2,266,494.34.

Pricing Tables (OFFERORS TO FILL IN)

The Offeror shall provide Firm Fixed Prices (FFPs) for Services under CLIN 0002 and 0005 as part of its price submission within the pricing tables below:

CLIN 0002 Evaluation Services for Nonstandard Repair (All Models)	
Year 1	Firm Fixed Price: \$
Year 2	Firm Fixed Price: \$
Year 3	Firm Fixed Price: \$
Year 4	Firm Fixed Price: \$
Year 5	Firm Fixed Price: \$

CLIN 0005 Expedited Calibration Services (All Models)	
Year 1	Firm Fixed Price: \$
Year 2	Firm Fixed Price: \$
Year 3	Firm Fixed Price: \$
Year 4	Firm Fixed Price: \$
Year 5	Firm Fixed Price: \$

CLIN 0005 Expedited Standard Repair Services (All Models)	
Year 1	Firm Fixed Price: \$
Year 2	Firm Fixed Price: \$
Year 3	Firm Fixed Price: \$

Year 4	Firm Fixed Price: \$
Year 5	Firm Fixed Price: \$

Incorporated provisions and clauses are those in effect through the latest Federal Acquisition Circular (FAC). Full text of incorporated FAR/DFARS clauses and provisions may be accessed electronically at <https://acquisition.gov/far>.

The following FAR and DFARS provisions and clauses apply to this solicitation:

52.203-3 Gratuities.
52.203-6 Restrictions on Subcontractor Sales to the Government.
52.203-12 Limitation on Payments to Influence Certain Federal Transactions.
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.
52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards.
52.204-13 System for Award Management Maintenance.
52.204-14 Service Contract Reporting Requirements.
52.204-19 Incorporation by Reference of Representations and Certifications.
52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment.
52.209-10 Prohibition on Contracting with Inverted Domestic Corporations.
52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law
52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services.
52.219-8 Utilization of Small Business Concerns.
52.219-28 Post-Award Small Business Program Rerepresentation.
52.222-3 Convict Labor.
52.222-35 Equal Opportunity for Veterans.
52.222-36 Equal Opportunity for Workers with Disabilities.
52.222-37 Employment Reports on Veterans.
52.222-40 Notification of Employee Rights Under the National Labor Relations Act.
52.222-41 Service Contract Labor Standards.
52.222-42 Statement of Equivalent Rates for Federal Hires.
52.222-44 Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment.
52.222-50 Combating Trafficking in Persons.
52.232-33 Payment by Electronic Funds Transfer—System for Award Management.
52.232-1 Payments.
52.232-39 Unenforceability of Unauthorized Obligations.
52.232-40 Providing Accelerated Payments to Small Business Subcontractors.
52.233-1 Disputes.
52.233-4 Applicable Law for Breach of Contract Claim
52.240-90 Security Prohibitions and Exclusions Representations and Certifications.
52.240-91 Security Prohibitions and Exclusions
52.240-93 Basic safeguarding of covered contractor
52.243-1 Alt 1 Changes—Fixed-Price. (Alternate I)
52.245-1 Government Property.
52.245-9 Use and Charges.
52.249-2 Termination for Convenience of the Government (Fixed-Price).
52.252-2 Clauses Incorporated by Reference.
52.252-6 Authorized Deviations in Clauses.
252.203-7000 Requirements Relating to Compensation of Former DoD Officials.
252.203-7002 Requirement to Inform Employees of Whistleblower Rights.

252.204-7003 Control of Government Personnel Work Product.
252.204-7009 Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.
252.204-7012 (Dev) Safeguarding Covered Defense Information and Cyber Incident Reporting.
252.204-7015 Notice of Authorized Disclosure of Information for Litigation Support.
252.204-7018 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.
252.204-7019 Notice of NISTSP 800-171 DoD Assessment Requirements
252.204-7020 NIST SP 800-171 DoD Assessment Requirements.
252.204-7021, Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements
252.204-7025, Notice of Cybersecurity Maturity Model Certification Level Requirements
252.223-7008 Prohibition of Hexavalent Chromium.
252.225-7048 Export-Controlled Items.
252.227-7015 Technical Data—Commercial Products and Commercial Services.
252.232-7010 Levies on Contract Payments.
252.243-7001 Pricing of Contract Modifications.
252.243-7002 Requests for Equitable Adjustment.
252.244-7000 Subcontracts for Commercial Items.
252.245-7003 Contractor Property Management System Administration.
252.245-7005 Management and Reporting of Government Property.
252.246-7007 Contractor Counterfeit Electronic Part Detection and Avoidance System.
252.246-7008 Sources of Electronic Parts.
252.247-7023 Transportation of Supplies by Sea

Clause incorporated by Full Text:

FAR 52.216-19 Order Limitations (Oct 1995)

(a)Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$100 the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b)Maximum order. The Contractor is not obligated to honor-

(1) Any order for a single service in excess of \$900,000

(1) Any order for a combination of services in excess of \$900,000

(2) A series of orders from the same ordering office within 60 days that together call for quantities exceeding the limitation in paragraph (b)(1) of this section.

(c)If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d)Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 15 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

FAR 52.216-22 Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract 12 Months after expiration of contract.

(End of clause)

Additional terms and conditions:

1. The Government's preferred method of payment is Government Purchase Card (Mastercard) for all orders under the Simplified Acquisition Threshold (SAT), if no surcharge is applicable. However if there is a credit card surcharge, the Government retains the unilateral digression to require electronic payment via Wide Area Workflow (WAWF). The method of pay for all orders exceeding the SAT will be WAWF.

2. The applicable Service Contract Act Wage Determinations by the Secretary of Labor are provided below (identified to the current Revision available as of the issue date of this solicitation): WAGE DETERMINATION #: 2015-5417 Rev 31); AREA: Colorado (Colorado Counties of El Paso, Teller), Attachment 4.

3. Quotes and any attachments shall be readable by Microsoft Office or Adobe Acrobat. Offeror shall include the following information with the submissions: point of contact (including phone number and email address), Contractor CAGE Code, and Contractor SAM Unique Entity ID.

To be determined technically acceptable, the offeror shall:

- 1) Offeror shall confirm ability to provide calibrations and repairs as detailed in the statement of work to all equipment models identified in attachment 1.
- 2) Offeror shall fill out pricing tables contained herein
- 3) Offeror shall confirm accept credit card, and that Credit card surcharge shall not exceed 4%
- 4) Offeror shall have an active registration in SAM at the time of quote submission.
- 5) Offeror shall have an active CMMC Level 1 (Self) assessment score within SPRS in accordance with DFARS 252.204-7021

Quotes shall be submitted electronically via email to Hannah Murphy at Hannah.l.murphy7.civ@us.navy.mil and must be received on or before the closing date listed in this SAM Posting. Quotes received after this date and time are late and may not be considered for award. For questions pertaining to this acquisition, please contact Hannah Murphy at Hannah.l.murphy7.civ@us.navy.mil

Attachment List

- 1) Statement of Work (SOW)
- 2) Equipment Model List
- 3) Contract Data Requirements List (CDRLs)
- 4) WAGE DETERMINATION #: 2015-5417 Rev 31